

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yanjiao Chen	Team: Team # 3	CCRB Case #: 201310969	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 11/16/2013 6:00 PM	Location of Incident: 138th Avenue and Farmers Boulevard	Precinct: 113	18 Mo. SOL 5/16/2015	EO SOL 5/16/2015	
Date/Time CV Reported Sat, 11/16/2013 9:15 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Thu, 11/21/2013 12:12 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Aaron Lohman	07378	942071	GANG Q
2. POM Stephen Hillmann	22209	941904	GANG Q
3. POM Christophe Kearney	16979	943429	GANG Q

Officer(s)	Allegation	Investigator Recommendation
A.POM Aaron Lohman	Abuse: PO Aaron Lohman stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
B.POM Christophe Kearney	Abuse: PO Christopher Kearney stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
C.POM Stephen Hillmann	Abuse: PO Stephen Hillmann stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
D.POM Christophe Kearney	Discourtesy: PO Christopher Kearney spoke rudely to § 87(2)(b)	
E.POM Christophe Kearney	Force: PO Christopher Kearney used physical force against § 87(2)(b)	
F.POM Christophe Kearney	Abuse: PO Christopher Kearney frisked § 87(2)(b)	
G.POM Aaron Lohman	Abuse: PO Aaron Lohman frisked § 87(2)(b)	
H.POM Stephen Hillmann	Abuse: PO Stephen Hillmann frisked § 87(2)(b)	
I.POM Christophe Kearney	Abuse: PO Christopher Kearney searched § 87(2)(b)	
J.POM Stephen Hillmann	Abuse: PO Stephen Hillmann searched § 87(2)(b)	
K.POM Aaron Lohman	Abuse: PO Aaron Lohman searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
§ 87(2)(g), § 87(4-b)		

Case Summary

On November 16, 2013, § 87(2)(b) and § 87(2)(b) filed this complaint in person at the 113th Precinct stationhouse on behalf of themselves and their relative § 87(2)(b). On November 21, 2014, this case was forwarded to the CCRB.

On November 16, 2013, at approximately 6 p.m., at 138th Avenue and Farmers Boulevard in Queens, PO Aaron Lohman, PO Christopher Kearney, and PO Stephen Hillmann of Queens Gang Squad stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants. The following allegations resulted from the encounter:

- **Allegation A – Abuse of Authority: PO Aaron Lohman stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.**
- **Allegation B – Abuse of Authority: PO Christopher Kearney stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.**
- **Allegation C – Abuse of Authority: PO Stephen Hillmann stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.**

§ 87(2)(g)

- **Allegation D – Abuse of Authority: PO Christopher Kearney spoke rudely to § 87(2)(b)**

§ 87(2)(g)

- **Allegation E – Force – PO Christopher Kearney used physical force against § 87(2)(b)**

§ 87(2)(g)

- **Allegation F – Abuse of Authority: PO Christopher Kearney frisked § 87(2)(b)**

§ 87(2)(g)

- **Allegation G – Abuse of Authority: PO Aaron Lohman frisked § 87(2)(b)**

- **Allegation H – Abuse of Authority: PO Stephen Hillmann frisked § 87(2)(b)**

§ 87(2)(g)

- **Allegation I – Abuse of Authority: PO Christopher Kearney searched § 87(2)(b)**

- **Allegation J– Abuse of Authority: PO Stephen Hillmann searched § 87(2)(b)**

§ 87(2)(g)

- **Allegation K – Abuse of Authority: PO Aaron Lohman searched the car in which § 87(2)(b)**

§ 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g)

- § 87(2)(g), § 87(4-b)

On November 22, 2013, mediation was presented to § 87(2)(b) via telephone, but he rejected it. Furthermore, during the telephone conversation, § 87(2)(b) confirmed that he sustained injuries during the incident. Therefore, this case is not eligible for mediation.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) of at the time of the incident. He is a black man who is 6'4" tall and weighs 223 pounds. He has black hair and brown eyes.

Statements Made to Medical Personnel

On § 87(2)(b), § 87(2)(b) received medical treatment at § 87(2)(b) Emergency Department (encl. E1 – E15). He stated that he was assaulted by an NYPD police officer on November 16, 2013. He was pulled out of a car and hit over the head and shoulder. The officer frisked him and bent him over.

CCRB Statement

On December 6, 2013, § 87(2)(b) was interviewed at the CCRB (encl. C6 – C11). On November 22, 2013, § 87(2)(b) provided a telephone statement to the CCRB (encl. C1 – C2), § 87(2)(g)

On November 16, 2013, at approximately 6 p.m., in the vicinity of 138th Avenue and Farmers Boulevard in Queens, § 87(2)(b) his cousin § 87(2)(b) and his cousin § 87(2)(b) returned to § 87(2)(b)'s car, a black 2009 Pontiac G8, after purchasing pizza. § 87(2)(b) was the driver, § 87(2)(b) was seated in the front passenger's seat, and § 87(2)(b) was seated in the backseat. § 87(2)(b) did not commit any traffic infractions.

§ 87(2)(b) made a right turn on 138th Avenue and Farmers Boulevard. Suddenly, an unmarked black Toyota Camry activated its lights and § 87(2)(b) pulled over. Three officers dressed in plainclothes, identified via the investigation as PO Lohman, PO Kearney, and PO Hillmann, exited the unmarked car. PO Lohman approached § 87(2)(b) PO Kearney approached § 87(2)(b) and PO Hillmann approached § 87(2)(b)

PO Kearney asked § 87(2)(b) for his license and registration. Meanwhile, § 87(2)(b) had his Samsung Galaxy cell telephone in his hand. PO Kearney pointed his flashlight at § 87(2)(b) and asked him to put his telephone down. § 87(2)(b) asked why and PO Kearney replied that he did not feel safe because he could not see what § 87(2)(b) was doing with his hands. § 87(2)(b) replied, "What do you mean? You got the flashlight on my hands." PO Kearney asked § 87(2)(b) once more to put his telephone away and, again, § 87(2)(b) asked why. In response, PO Kearney asked, "So, you're not going to put your telephone down?" § 87(2)(b) stated that he did know why he had to put the telephone away.

Suddenly, PO Kearney opened the passenger's side door and, without warning, he punched § 87(2)(b) on the right side of his jaw and pressed his forearm on the side of his face. PO Kearney pressed § 87(2)(b)'s head down toward his left shoulder; with his other hand, PO Kearney tried to unbuckle § 87(2)(b)'s seatbelt. Meanwhile, § 87(2)(b) was trying to remove his seatbelt. PO Kearney tried to pull him out of the car. § 87(2)(b) told PO Kearney that he did not have to try to pull him out of the car because he could exit the car by himself. PO Kearney stated, "Get the fuck out the seat. Get the fuck out the seat. You're going to end up on the floor in a second."

§ 87(2)(b) exited the car and stood near the passenger's side. Subsequently, PO Kearney first searched each of § 87(2)(b)'s six pants pockets, and then frisked him from his neck to his knees. § 87(2)(b) was wearing cargo pants that contained six pockets. PO Kearney retrieved § 87(2)(b)'s wallet and identification card from his right front pants pockets during the search. PO Kearney then searched and frisked § 87(2)(b) twice more.

PO Kearney told § 87(2)(b) to stand at the rear of the car and he complied. At the rear, § 87(2)(b) told PO Hillmann, "You know he's wrong. I want his name and I want his badge number." Additionally, § 87(2)(b) asked PO Hillmann why they were pulled over. PO Hillmann told § 87(2)(b) to calm down and stated that he would provide him with the requested information after the car was searched.

PO Lohman told § 87(2)(b) to exit the car and PO Kearney told § 87(2)(b) to exit the car and they complied. § 87(2)(b) stated that PO Kearney frisked and searched § 87(2)(b)'s pants pockets and retrieved his identification card. However, the investigation determined that PO Hillmann frisked § 87(2)(b). After looking at the card, PO Hillmann returned it to § 87(2)(b).

PO Lohman searched under the driver's seat of § 87(2)(b)'s car for less than one minute. § 87(2)(b) did not see PO Lohman search any other areas of the car. After the search, PO Kearney told § 87(2)(b) to get in the car and he complied. When § 87(2)(b) entered the car, he noticed that a car reader that was under the passenger's side seat was on top of the passenger's side seat.

PO Kearney stated, "Robinson 1789," and § 87(2)(b) asked what he was referring to. PO Kearney replied, "You wanted my name and badge number – I'm giving it to you." § 87(2)(b) asked him to wait until he retrieved a pen so that he could write down the information. PO Kearney replied, "No, I'm not waiting," and walked off. PO Kearney, PO Lohman, and PO Hillmann left the scene. (The originally assigned investigator looked up Robinson 1789, and found no one in the NYPD of that name and shield number.)

Later, § 87(2)(b) and § 87(2)(b) all went the 113th Precinct stationhouse to file this complaint, upon which they learned that the precinct had no officer by the name of Robinson and shield number 1789. At the stationhouse, they also ran into PO Lohman, PO Kearney, and PO Hillmann.

During his telephone statement, § 87(2)(b) did not make any discourtesy allegations against PO Kearney. In his telephone statement, he also stated that he did not know if PO Kearney searched § 87(2)(b) or if PO Lohman frisked or searched § 87(2)(b).

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a black man who is 6'3" tall and weighs 210 pounds. He has brown hair and brown eyes.
- § 87(2)(b)

CCRB Statement

On December 6, 2013, § 87(2)(b) was interviewed at the CCRB (encl. C12 – C17). On November 22, 2013, § 87(2)(b) provided a telephone statement to the CCRB (encl. C3 – C4). § 87(2)(g)

When § 87(2)(b) arrived at 138th Avenue and Farmers Boulevard, he signaled with his left indicator and made a left turn. § 87(2)(b) began parking his car. He did not commit any traffic infractions.

A few seconds after § 87(2)(b) provided PO Lohman with his license and registration, PO Kearney told § 87(2)(b) "Put the fucking telephone down." § 87(2)(b) asked why and PO Kearney repeated, "Put the fucking telephone down."

§ 87(2)(b) turned to PO Lohman and told him that the way PO Kearney was behaving was unnecessary. § 87(2)(b) looked over to his right and saw that the passenger's side door was open. PO Kearney was reaching for § 87(2)(b)'s telephone. PO Kearney was grabbing § 87(2)(b)'s forearm and trying to pull him out of the car. § 87(2)(b) told PO Kearney to get his hands off him and PO Kearney stated, "Take the fucking belt off."

PO Kearney placed his forearm on the back of § 87(2)(b)'s neck and doubled § 87(2)(b) over. PO Kearney tried to unbuckle § 87(2)(b)'s seatbelt and pull § 87(2)(b) out of the car. As he did so, PO Kearney stated, "Take the fucking belt off. Get out the fucking car."

Moments later, § 87(2)(b) exited the car and the first thing PO Kearney did was frisk him. Just then, PO Lohman ordered § 87(2)(b) to exit the car and frisked him. § 87(2)(b) never saw PO Kearney go into § 87(2)(b)'s pockets. PO Lohman did not reach into any of § 87(2)(b)'s pockets. § 87(2)(b) was wearing black sweatpants and a black thermal shirt. His telephone was in his pants pocket. After the frisk, PO Lohman told him to stand at the rear of the car.

§ 87(2)(b) stated that PO Kearney subsequently interacted with § 87(2)(b) but the investigation determined that it was actually PO Hillmann who did so. PO Hillman asked § 87(2)(b) to exit the vehicle, frisked him, and asked him for his identification card. § 87(2)(b) took his identification card out of his wallet and gave it to PO Hillman. § 87(2)(b) made sure to watch PO Hillmann deal with § 87(2)(b) because he did not want § 87(2)(b) to be harmed but only started observing their interaction when § 87(2)(b) handed his identification over.

PO Lohman searched the car by looking under the driver and passenger's side seats. § 87(2)(b)'s scanner that had been under the passenger's side seat was pulled out. PO Lohman did not search any other areas of the car and did not search any compartments in the car. § 87(2)(b) never saw PO Kearney holding onto § 87(2)(b)'s wallets, but recalled seeing his, § 87(2)(b) and § 87(2)(b) identifications thrown on their respective seats inside the vehicles. § 87(2)(b) assumes that PO Kearney acquired § 87(2)(b)'s identification, but does not know how.

At the 113th Precinct stationhouse, PO Kearney told § 87(2)(b) "Why are you here? What's the fucking problem?" Furthermore, he stated that he had already provided them with the CCRB's telephone number, which he did not do.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a black man who is 6'5" and weighs 212 pounds. He has black hair and brown eyes.

On November 25, 2013, § 87(2)(b) provided a telephone statement (encl. C5), which is included below, to the CCRB. Between November 24, 2013 and December 26, 2013, five calls were made to § 87(2)(b) and two letters were mailed to him. None of the letters that were mailed to him have been returned to the CCRB by the United States Postal Service. To date, § 87(2)(b) has not contacted the CCRB to schedule an interview.

Telephone Statement

On November 16, 2013, at approximately 6 p.m., in the vicinity of 138th Avenue and Farmers Boulevard in Queens, § 87(2)(b) his brother § 87(2)(b) and his cousin § 87(2)(b) entered § 87(2)(b)'s car. § 87(2)(b) was the driver, § 87(2)(b) was in the front passenger's seat, and § 87(2)(b) was seated in the backseat. § 87(2)(b) drove to 138th Street and Farmers Boulevard and started parking the car.

PO Kearney frisked § 87(2)(b) and PO Lohman frisked and searched § 87(2)(b). § 87(2)(b) did not know if PO Kearney searched § 87(2)(b). After PO Kearney frisked § 87(2)(b), he told § 87(2)(b) to exit the car and frisked and searched him. However, the investigation determined that PO Hillmann was the one who frisked § 87(2)(b). PO Kearney removed § 87(2)(b)'s wallet from his pocket and retrieved his identification card from the wallet. PO Lohman searched the car but did not discover anything during the search.

NYPD Statements

Subject Officer: PO AARON LOHMAN

- *PO Lohman was § 87(2)(b) old at the time of the incident. He is a white man who is 6'4" tall and weighs 350 pounds. He has brown hair and blue eyes.*
- *On November 16, 2013, PO Lohman worked in plainclothes from 1:27 p.m. to 10 p.m. alongside PO Christopher Kearney and PO Stephen Hillman. He was assigned to gang enforcement for the Queens Gang Squad in unmarked vehicle § 87(2)(b), a black Toyota sedan.*

Memo Book

PO Lohman's memo book notes verbatim (encl. D2 – D5), "1800: car stop corner of 138 Avenue and Farmers Boulevard fail to signal/block intersection. Pontiac G8 black occupied by three male blacks unknown names. Upon car stop vehicle front seat passenger made furtive movements several times as if to attempt to grab something from under seat. After being told several times to stop front passenger was removed from vehicle for safety reasons. Frisk conducted for weapons on other two people due to furtive movements as well. 93Qx3 prepared by PO Kearney."

CCRB Interview

On February 27, 2014, PO Lohman was interviewed at the CCRB (encl. D6 – D8).

On November 16, 2013, at approximately 6 p.m., on 138th Avenue and Farmers Boulevard in Queens, from inside their unmarked patrol car, PO Lohman, PO Kearney, and PO Hillman observed a car that was directly in front of them make a left turn without signaling while blocking the intersection.

Because the motorist failed to signal and was blocking the intersection, the officers stopped the car. PO Lohman approached the driver's side, where § 87(2)(b) was sitting, while PO Kearney and PO Hillman approached the passenger's side, where § 87(2)(b) was seated. § 87(2)(b) was seated in the backseat.

As the officers approached the car, § 87(2)(b) hunched forward and placed his hand under the seat between his legs two to three times. He appeared to be reaching for something. When PO Lohman arrived at the driver's side, he requested § 87(2)(b)'s license, registration, and insurance card. § 87(2)(b) stated that he was not carrying his license and PO Lohman did not recall if he produced the requested documents.

As PO Lohman spoke with § 87(2)(b), an argument broke out between PO Kearney and § 87(2)(b). PO Kearney ordered § 87(2)(b) approximately five times to stop reaching under his seat. PO Lohman stopped talking to § 87(2)(b) and turned his attention toward § 87(2)(b) and noticed that he was still reaching under his seat.

PO Kearney tried to unbuckle § 87(2)(b)'s seatbelt, but § 87(2)(b) refused to allow him to do so. After a few moments, PO Kearney was able to remove § 87(2)(b) from the vehicle. PO Lohman did not recall how PO Kearney managed to get § 87(2)(b) out of the car because his attention had switched back to § 87(2)(b) at that point.

PO Lohman did not hear PO Kearney use any profanity. Specifically, he did not hear him say, "Get the fuck out the seat. Get the fuck out the seat. You're going to end up on the floor in a second." He

did not hear PO Kearney say, “Put the fucking telephone down,” or “Take the fucking belt off.” PO Lohman did not see PO Kearney punch § 87(2)(b) or press his forearm against § 87(2)(b).

PO Lohman did not see PO Kearney frisk or search § 87(2)(b) and he did not see any interaction between PO Kearney and § 87(2)(b) after § 87(2)(b) was removed from the vehicle. He did not see PO Kearney with any civilian’s wallet in his hand. He did not see PO Kearney frisk or search § 87(2)(b) and he did not recall if § 87(2)(b) was frisked or searched.

Shortly thereafter, PO Lohman observed a square-shaped, “heavy” bulge on § 87(2)(b) § 87(2)(b)’s front pocket that measured approximately four to five inches in length, which, according to PO Lohman, is “gun size.” Consequently, PO Lohman believed § 87(2)(b) may have been carrying a weapon. Accordingly, PO Lohman told § 87(2)(b) to exit the vehicle and he complied. PO Lohman frisked § 87(2)(b)’s front waistband area because he observed the bulge and because of passenger § 87(2)(b)’s earlier furtive movements. During the frisk, PO Lohman discovered that the bulge was a cell telephone by the way it felt. PO Lohman did not search § 87(2)(b) § 87(2)(b).

PO Lohman searched the reachable areas of the vehicle to ensure that there was not a weapon in those areas. PO Lohman believed there may have been a weapon in the car because of the furtive movements § 87(2)(b) exhibited earlier before and during the stop. PO Lohman searched the driver and passenger’s side: he searched the seats, the area under the seats, and the floor. PO Lohman searched the car for approximately one and a half minutes. Nothing was recovered from the car search.

PO Lohman did not see § 87(2)(b) or § 87(2)(b) being frisked or searched. PO Kearney did not say, “Robinson 1789” during the incident.

After the vehicle search, § 87(2)(b) and § 87(2)(b) were free to leave and the officers left the scene. No arrests were made and no summonses were issued. Due to the nature of his job, PO Lohman does not always carry summonses and he did not recall if he carried any during the incident. PO Lohman did not issue a summons during the incident since he prefers not to issue summonses because, due to the nature of his command and assignment, he wishes to build trust with the community. Stop, Question and Frisk reports were prepared by PO Kearney.

Later that night, at an unknown time, PO Lohman, PO Kearney, and PO Hillman saw § 87(2)(b) § 87(2)(b) and § 87(2)(b) at the 113th Precinct stationhouse. They were speaking to officers at the front desk and appeared to be filing a CCRB complaint. PO Lohman did not interact with any of the three civilians at the stationhouse and he did not see PO Kearney or PO Hillman interact with them. He did not hear PO Kearney say, “Why are you here? What’s the fucking problem” at the stationhouse.

Subject Officer: PO CHRISTOPHER KEARNEY

- *PO Kearney was § 87(2)(b) old at the time of the incident. He is a white man who is 5’10” and weighs 170 pounds. He has black hair and brown eyes.*
- *On November 16, 2013, PO Kearney worked in plainclothes from 1:27 p.m. to 10 p.m. alongside PO Aaron Lohman and PO Stephen Hillman. He was assigned to the Enforcement Unit for Queens Gang Squad in unmarked patrol car § 87(2)(b) which is a black/grey Toyota Camry.*

Memo Book

PO Kearney’s memo book notes verbatim (encl. D10 – D11), “1800: Car stop – Farmers and 138th Avenue 3 male black in black Pontiac failed to signal. Car stop conducted. Front seat passenger observed reaching under front seat making furtive movements. Refused to show his hands and follow directions to stop reaching placing officers in fear for their safety. Passenger refused to step out of vehicle. 93Q Refused to identify themselves.”

CCRB Statement

On February 27, 2014, PO Kearney was interviewed at the CCRB (encl. D12 – D14).

On November 16, 2013, at approximately 6 p.m., PO Lohman (driver), PO Kearney (passenger's side), and PO Hillman were driving in an unmarked Toyota Camry at the intersection of 138th Avenue and Farmers Boulevard in Queens. Suddenly, a black Pontiac that was directly in front of them made a left turn without signaling and, while completing the turn, stopped at the intersection, blocking traffic.

PO Kearney and PO Lohman observed the traffic infraction and stopped the vehicle. PO Lohman, PO Kearney, and PO Hillman exited their patrol car and approached the driver's side, the passenger's side, and the backseat, respectively.

As PO Kearney approached the passenger's side, he saw the front seat passenger, identified via the investigation as § 87(2)(b), look over his shoulder towards the officers and reach under his seat. His arms were between his legs and he moved his arms about as if he were reaching for something. When asked if § 87(2)(b) was ever holding a telephone during the incident, PO Kearney replied no.

PO Kearney tapped on the glass and told § 87(2)(b) "Let me see your hands. Stop reaching under the seat." § 87(2)(b) disregarded PO Kearney's request and continued reaching under the seat. PO Kearney repeated the order, but § 87(2)(b) disregarded it again.

PO Kearney gave § 87(2)(b) the benefit of the doubt in thinking that the latter may not have heard the request because the car window was up, so he opened the passenger side door and repeated the request. § 87(2)(b) leaned back in his seat, but kept his hands under the seat. PO Kearney told § 87(2)(b) one more time to stop reaching under the seat and to let him see his hands but still, § 87(2)(b) refused.

Because § 87(2)(b) continued to reach under the seat, PO Kearney feared that he may have been reaching for a gun. Thus, to get § 87(2)(b) away from the area where the gun may have been concealed, PO Kearney told § 87(2)(b) to exit the car.

§ 87(2)(b) stated that he was not going to exit the car. PO Kearney repeated the order and, after § 87(2)(b) refused again, PO Kearney ordered § 87(2)(b) to unbuckle his seatbelt. § 87(2)(b) refused to so PO Kearney tried to unbuckle the seatbelt himself. § 87(2)(b) however raised his forearm and placed it against PO Kearney to prevent him from doing so. PO Kearney then leaned over, reached across § 87(2)(b) and unbuckled his seatbelt.

PO Kearney grabbed § 87(2)(b)'s right arm and led him out of the vehicle. He never used any profanity towards § 87(2)(b) and specifically did not use any derivation of the word "fuck". PO Kearney did not punch § 87(2)(b) push his forearm into his face, or press his head down. § 87(2)(b) did not sustain any injuries and he did not complain of any.

PO Kearney frisked § 87(2)(b)'s waistband area to make sure he was not carrying any weapons. PO Kearney believed § 87(2)(b) may have been carrying a weapon because of the furtive movements he exhibited earlier. PO Kearney did not observe any bulges on § 87(2)(b). PO Kearney only frisked § 87(2)(b) once.

PO Kearney did not search § 87(2)(b). He did not obtain his wallet. § 87(2)(b) and § 87(2)(b) all refused to identify themselves. § 87(2)(b) told PO Kearney that he was not carrying an identification card.

PO Kearney did not see what was occurring with § 87(2)(b) or § 87(2)(b) as he was focused solely on § 87(2)(b). Thus, he did not see any interaction between them and officers. Specifically, he did not see any officers frisk or search § 87(2)(b) or § 87(2)(b).

After § 87(2)(b) was frisked, PO Kearney walked him to the rear of the car, where he joined § 87(2)(b), PO Lohman, and PO Hillman. PO Kearney informed PO Lohman that he saw § 87(2)(b) reach under his seat and told him to check under that seat. There were no other reasons for the vehicle search. PO Lohman conducted a limited search of the car: he only searched the

passenger's seat and the area under it, as these were the areas that were immediately accessible to § 87(2)(b) when he was seated. PO Lohman searched that area for less than one minute.

PO Kearney did not interact with § 87(2)(b). Specifically, he did not frisk or search him. He did not obtain his identification card at any point. PO Kearney did not say, "Robinson 1789." None of the civilians asked PO Kearney for his shield number on the scene.

After he searched the vehicle, PO Lohman admonished § 87(2)(b) and § 87(2)(b) and told them they were free to leave. PO Kearney used his discretion and did not issue any summonses. PO Kearney did not recall why he did not issue any summonses. PO Kearney completed Stop, Question and Frisk Reports for this incident.

At approximately 9:30 p.m., PO Kearney saw § 87(2)(b) and § 87(2)(b) at the 113th Precinct stationhouse filing a complaint. Sgt. Brian Goss provided § 87(2)(b) with PO Kearney's name and shield number. PO Kearney did not interact with § 87(2)(b) or § 87(2)(b) at the stationhouse. At the stationhouse, PO Kearney did not use the expletive "fuck" or say, "Why are you here? What's the fucking problem?"

Subject Officer: PO STEPHEN HILLMANN

- PO Hillmann was § 87(2)(b) old at the time of the incident. He is a white man who is 5'11" tall and weighs 240 pounds. He has blond hair and hazel eyes.
- On November 16, 2013, PO Hillmann worked in plainclothes from 1:27 p.m. to 10 p.m. alongside PO Christopher Kearney and PO Aaron Lohman. He was assigned to Enforcement Unit for Queens Gang Squad in unmarked patrol car § 87(2)(b) a black Toyota Camry.

Memo Book

PO Hillmann's memo book notes verbatim (encl. D16 – D18), "1800: Car stop corner of 138 Avenue and Farmers Boulevard fail to signal/block intersection Pontiac G8 black occupied by 3 male blacks unknown names or info. Upon car stop vehicle from seat passenger made furtive movements several times as if to grab something from under his seat. After being told several times to stop, front seat passenger was removed from vehicle for safety reasons. Frisk conducted for weapons of other 2 people due to furtive movements as well. Other report prepared (no arrest) x3 by PO Kearney."

CCRB Statement

On March 11, 2014, PO Hillmann was interviewed at the CCRB (encl. D19 – D21). § 87(2)(g)

The black Pontiac made a left turn without signaling. However, there was not enough space for the car on the lane it was attempting to enter so the car remained stationery in the middle of the intersection, blocking incoming northbound traffic.

As they approached the car, PO Hillmann observed a man identified via the investigation as § 87(2)(b) reach under his seat, toward his left. He reached into that area two to three times. PO Kearney asked § 87(2)(b) two to three times to stop moving.

§ 87(2)(b) did not comply with PO Kearney's orders, so PO Kearney reached into the car, removed § 87(2)(b)'s seatbelt, and removed him from the car. PO Hillmann was not able to see how PO Kearney removed him from the vehicle, as his view was obstructed since he was behind PO Kearney. There was no struggle or physical altercation between PO Kearney and § 87(2)(b). PO Kearney did not punch, or otherwise strike, § 87(2)(b). He did not press his forearm across § 87(2)(b)'s face or press his head down.

PO Hillmann frisked a man identified via the investigation as § 87(2)(b) in his waistband area to ensure that he was not carrying any weapons. PO Hillmann believed § 87(2)(b) may have been carrying weapons because there may have been weapons in the car since § 87(2)(b) was making furtive

movements. § 87(2)(b) was frisked once and he was not searched. § 87(2)(b) did not have any visible bulges on his clothing. After the frisk, § 87(2)(b) was brought to the rear of the car.

PO Kearney frisked § 87(2)(b) and PO Lohman frisked § 87(2)(b) but did not search them. PO Lohman entered the passenger's side and appeared to be searching the areas that were within § 87(2)(b)'s reach. However, PO Lohman was not able to see which parts of the car he searched as his view was obstructed by the car.

The officers used their discretion and decided not to issue any summonses for the traffic infraction because they did not feel that they should have due to the "nature of [their] job." When asked to elaborate on this, PO Hillmann repeated the same information and was not able to explain exactly why that decision was made.

PO Hillmann did not hear PO Kearney use any profanity toward § 87(2)(b). He did not hear him use the expletive "fuck" and he did not hear him make any of the following remarks: "Get the fuck out the seat." "Put the fucking telephone down." "Take the fucking belt off." None of the civilians requested PO Kearney's name or shield number. PO Kearney did not say, "Robinson 1789." § 87(2)(b) did not sustain any injuries or compliant of any injuries.

Medical Records

§ 87(2)(b)
On § 87(2)(b) § 87(2)(b) received medical treatment at § 87(2)(b) Emergency Department (encl. E1 – E15). He complained of back pain and was treated by § 87(2)(b). He was diagnosed with multiple contusions on his back and prescribed 10 mg doses of Flexeril, which is a muscle relaxant.

NYPD Documents

Stop, Question, and Frisk Index Coversheet

The Stop, Question, and Frisk Index Coversheet for the 113th Precinct from November 16, 2013 to December 12, 2013 does not include any entries related to this incident (encl. F1).

Command Log

The 113th Precinct Command Log for November 16, 2013 (encl. F22 – F39) states that, at 8:10 a.m., § 87(2)(b) and § 87(2)(b) came to the stationhouse to file a complaint against PO Lohman, PO Kearney, and PO Hillmann for an improper stop conducted at 137th Avenue and Farmers Boulevard in Queens.

Status of Civil Proceedings

As of June 30, 2014, neither § 87(2)(b) nor § 87(2)(b) have filed a notice of claim with the City of New York regarding this incident (enc. I-5).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

■ [REDACTED]

■ [REDACTED]

■ [REDACTED]

■ [REDACTED]

■ [REDACTED]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (encl. A6 – A8).

Subject Officers CCRB History

- PO Lohman has been a member of the service for seven years and there are two substantiated CCRB allegations against him. (encl. A1 – A3):
 - In CCRB Case 200908337, two physical force allegations were substantiated against PO Lohman, but the NYPD declined to prosecute the case.
- PO Kearney has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. A4).
- PO Hillmann has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. A5).

Conclusion

Identification of Subject Officers

PO Lohman, PO Kearney, and PO Hillmann acknowledged interacting with § 87(2)(b) and § 87(2)(b).

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Aaron Lohman stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B – Abuse of Authority: PO Christopher Kearney stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C – Abuse of Authority: PO Stephen Hillmann stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Lohman, PO Kearney, and PO Hillmann stopped § 87(2)(b)'s car. § 87(2)(g).

According to § 87(2)(b) and § 87(2)(b), § 87(2)(b) did not commit any traffic infractions prior to the stop. According to PO Lohman, PO Kearney, and PO Hillmann, § 87(2)(b) made a left turn without signaling and blocked the intersection. The officers used their discretion and did not issue any summonses to § 87(2)(b). PO Lohman stated that he prefers not to summons civilians in an effort to build trust with the community, and neither PO Kearney nor PO Hillmann could recall why a summons was not issued.

§ 87(2)(g)

Allegation D – Abuse of Authority: PO Christopher Kearney spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that, as PO Kearney was trying to pull him out of the seat, he stated, “Get the fuck out the seat. Get the fuck out the seat.” He did not allege that PO Kearney made any additional discourteous remarks toward him.

§ 87(2)(b) stated that PO Kearney told § 87(2)(b) “Put the fucking telephone down,” and “Take the fucking belt off.” Furthermore, § 87(2)(b) stated that, at the 113th

Precinct stationhouse, PO Kearney told § 87(2)(b) “Why are you here? What’s the fucking problem?”
§ 87(2)(b) did not mention that PO Kearney used profanity against § 87(2)(b)

PO Kearney denied the allegations and PO Lohman and PO Hillmann did not hear him use any profanity during the incident.

§ 87(2)(g)

Allegation E – Force – PO Christopher Kearney used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Kearney punched him on the right side of his jaw. Neither § 87(2)(b) nor § 87(2)(b) made any mention of PO Kearney punching § 87(2)(b) PO Kearney denied the allegation and PO Lohman and PO Hillmann stated that PO Kearney did not punch § 87(2)(b)

§ 87(2)(b) made no mention of being punched to medical personnel. Furthermore, he did not report any injuries to the CCRB or medical personnel that resulted from the alleged punch. § 87(2)(b) was not diagnosed with any facial injuries, only contusions on his back

§ 87(2)(g)

Allegation F – Abuse of Authority: PO Christopher Kearney frisked § 87(2)(b)

It is undisputed that PO Kearney frisked § 87(2)(b) § 87(2)(g)

Both § 87(2)(b) and § 87(2)(b) stated that when the officers arrived at their vehicle, § 87(2)(b) was holding his cell telephone in plain view. PO Kearney also had his flashlight shining on § 87(2)(b)'s phone. PO Kearney asked § 87(2)(b) to put away the cell telephone, and when the latter refused, PO Kearney punched § 87(2)(b) in the face, pulled him out of the car, and frisked him.

All three officers observed § 87(2)(b) make a furtive movement upon their approach. § 87(2)(b) was reaching under his seat with both hands and did not comply with PO Kearney's commands to stop doing so. PO Kearney stated that because he issued the command so many times, and each time § 87(2)(b) refused to comply, he believed § 87(2)(b) was reaching for a weapon. Therefore, he asked § 87(2)(b) to exit the vehicle. § 87(2)(b) however again refused, and ultimately, PO Kearney pulled § 87(2)(b) out of the vehicle and frisked him. Both PO Lohman and PO Hillman recalled PO Kearney commanding § 87(2)(b) to stop reaching under his seat and to exit the vehicle. PO Lohman also observed § 87(2)(b) reaching under his seat when PO Kearney was commanding § 87(2)(b) not to.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation G – Abuse of Authority: PO Aaron Lohman frisked § 87(2)(b)

Allegation H – Abuse of Authority: PO Stephen Hillmann frisked § 87(2)(b)

It is undisputed that § 87(2)(b) and § 87(2)(b) were cooperative throughout the incident. It is also undisputed that PO Lohman and PO Hillmann frisked § 87(2)(b) and § 87(2)(b) respectively.

PO Lohman observed a square-shaped, “heavy” bulge on § 87(2)(b)’s front pocket that measured approximately four to five inches in length, which he described as “gun size.” Because of the observed bulge and the fact that § 87(2)(b) who was seated next to § 87(2)(b) made furtive movements, PO Lohman believed § 87(2)(b) may have been carrying a weapon. Consequently, PO Lohman frisked § 87(2)(b). During the frisk, PO Lohman discovered that the bulge was a cell telephone by the way it felt. PO Hillmann frisked § 87(2)(b) because he believed he may have been carrying a weapon because of § 87(2)(b)’s furtive movements.

An officer may frisk an individual if that officer reasonably suspects that he or she is in danger of physical injury because that individual is armed. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. AA1 – AA11). In order to justify a frisk based on the observation of a bulge on an individual’s clothing, an officer must provide proof that the object observed could reasonably be suspected of being a gun. People v. Marine, 142 A.D.2d 368 (1st Dept. 1989) (encl. AA14 – AA16). If an officer recovers a weapon from one of the occupants in a vehicle during a stop, he or she is entitled to frisk all of the occupants of that vehicle. People v. Branch, 134 Misc. 2d 705 (Sup. Ct., Bronx Co. 1987) (encl. AA17 – AA20).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation I – Abuse of Authority: PO Christopher Kearney searched § 87(2)(b)

Allegation J – Abuse of Authority: PO Stephen Hillmann searched § 87(2)(b)

§ 87(2)(b) alleged that once he was out of the vehicle, PO Kearney immediately searched him three times. § 87(2)(b) alleged that PO Hillmann also searched him. From these searches, PO Kearney and PO Hillmann took out § 87(2)(b) and § 87(2)(b) identification cards from their wallets, respectively. § 87(2)(b) however stated that he did not see either PO Kearney or PO Hillmann

go into the pockets of § 87(2)(b) and § 87(2)(b) respectively. He was unable to see all of the interaction that § 87(2)(b) had with PO Kearney, and that § 87(2)(b) had with PO Hillmann. § 87(2)(b) confirmed though that § 87(2)(b) who took out his own identification card from his wallet, and provided it to PO Hillmann. § 87(2)(b) did not know if PO Kearney searched § 87(2)(b) but § 87(2)(b) affirmed that PO Hillmann did search § 87(2)(b).

PO Kearney and PO Hillman denied the allegations and denied ever retrieving § 87(2)(b) and § 87(2)(b) wallets. PO Kearney noted in his memo book that all three civilians refused to identify themselves. PO Lohman did not know if § 87(2)(b) and § 87(2)(b) were ever searched, but stated that he did not see either PO Kearney or PO Hillmann holding wallets.

§ 87(2)(g)

Allegation K – Abuse of Authority: PO Aaron Lohman searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Lohman searched the driver’s side and passenger’s side seats in § 87(2)(b) § 87(2)(b) s car. PO Lohman conducted the limited search to ensure that there was not a weapon in the “reachable areas.” PO Lohman believed there may have been a weapon in the car because of the furtive movements § 87(2)(b) exhibited prior to and during the stop.

After a lawful car stop, an officer can conduct a limited search of the vehicle only if information revealed during the course of the encounter leads to the conclusion that a weapon located within the vehicle presents an actual and specific danger to the officer’s safety. People v. Torres, 74 N.Y.2d 224 (1989) (encl. AA21 – AA27).

§ 87(2)(g)

§ 87(2)(g)

Team: 3

Investigator:	_____	<u>Yanjiao Chen</u>	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date